

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Purchased:

-----X
CHRISTOPHER JOHNSON,

Plaintiff designates

Kings County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and where Plaintiff resides

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, GARTH
MERANDY, and JOHN or JANE DOE 1-20,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 19, 2019



SIM & DEPAOLA, LLP
By: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**GARTH MERANDY DET. OF STRATEGIC RESPONSE GROUP (SRG)
SHIELD #5557, TAX ID #949326**

1278 Sedgwick Avenue
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CHRISTOPHER JOHNSON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, GARTH
MERANDY, and JOHN or JANE DOE 1-20,Defendants.
-----X

Plaintiff, Christopher Johnson, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a January 1, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Christopher Johnson at approximately 12:10 A.M. in the vicinity of 625 E. 40th Street, County of the Kings, State of New York. Christopher Johnson was subsequently wrongfully charged with Criminal Possession of a Firearm and Criminal Possession of a Weapon in the Fourth Degree.
2. As a result, Christopher Johnson was deprived of his liberty and suffered physical and psychological injuries. Mr. Johnson was wrongfully incarcerated over the course of three (3) days. He was maliciously prosecuted, until the dismissal of all charges on May 17, 2018, by the Hon. M. Dougherty of the Kings County Criminal Court.
3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Christopher Johnson (“Mr. Johnson”) resides at 517 Rutland Road, Apt. 1, Brooklyn, New York, 11203.
5. The Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York.
6. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
8. Defendant Police Officer Garth Merandy (“Merandy”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Merandy was, at all times relevant herein, a Police Officer under Shield No. 5557, Tax ID No. 949326 at the Department of Strategic Response Group, located at 1278 Sedgwick Ave, Bronx, NY 10452. Defendant Merandy is being sued in his individual and official capacities.
9. At all times relevant Defendants John and/or Jane Doe 1-20 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants

John or Jane Doe 1-10, but such knowledge is believed to in possession of the defendants.

10. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.
11. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been timely commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On January 1, 2018 at approximately 12:10 A.M., Mr. Johnson was in the vicinity of 625 East 40 Street, County of Kings, State of New York.
17. On said date, time and location, Mr. Johnson was walking toward his vehicle which was parked along the driveway.

18. On said date, time and location, Defendants, including Merandy, unlawfully stopped Mr. Johnson without any probable cause or reasonable suspicion to do so, as plaintiff was not in violation of any laws.
19. Mr. Johnson had not committed any crimes or violations of the law.
20. Defendants, including Merandy, fabricated a false phone call, in which they claimed someone reported a gun shot, when they knew such claim was untrue and a complete fabrication.
21. Then Defendants, including Merandy, illegally searched Mr. Johnson without probable cause or justification to do so. However, no contraband was recovered.
22. Then Defendants, including Merandy, illegal opened and searched Mr. Johnson's vehicle without any probable cause or justification using Mr. Johnson's keys found in his person. However, no contraband was recovered.
23. Defendants, including Merandy, radioed for back-up when they were searching Mr. Johnson's vehicle.
24. Later approximately twenty (20) more police officers, John and/or Jane Doe 1-20 arrived at the location.
25. Defendants, including Merandy and John and/or Jane Doe 1-20, proceeded to search the trunk of Mr. Johnson's vehicle without probable cause or justification to do so. No contraband was recovered.
26. Defendants, including Merandy, falsely claimed that Plaintiff was in possession of a firearm and a weapon in his vehicle, when they knew such allegations were untrue and completely fabrications.

27. Mr. Johnson asserts that while he was present in said location, he was only two (2) feet away from his vehicle and therefore he had ample opportunity to observe, and did observe his vehicle where Defendants, including Merandy, claimed to have found a firearm and a weapon.
28. Mr. Johnson further asserts that no firearm or weapon was found in his vehicle, where Defendants, including Merandy, claimed to have found a firearm and a weapon.
29. Then Defendants, including Merandy, illegally placed handcuffs on Mr. Johnson without any probable cause or justification.
30. As a result of Defendants', including Merandy's, knowingly and intentionally false statements and allegations, Mr. Johnson was falsely arrested under arrest number 2018KN000077.
31. Defendant Merandy was Mr. Johnson's arresting officer.
32. Defendant Merandy falsely arrested Plaintiff claiming he was in criminal possession of a firearm and a weapon that he personally found in Plaintiff's vehicle.
33. Defendant Merandy was fully aware that no weapon or firearm was found in Mr. Johnson's vehicle, but knowingly and intentionally chose to state a firearm and a weapon was found in Plaintiff's vehicle to justify and excuse an otherwise invalid arrest.
34. Mr. Johnson was never in actual, constructive or statutory possession of any firearm or weapon, as no weapon or firearm was ever found in Plaintiff's vehicle.
35. Plaintiff did not commit any crimes or violations of the law.
36. Plaintiff was transported to the 67th precinct.

37. At the precinct Plaintiff was illegally interrogated by defendants. While being interrogated at the police precinct, Mr. Johnson learned for the first time that he was being charged with criminal possession of a firearm.
38. Then Mr. Johnson was sent to Central Booking for a crime he did not commit.
39. In Central Booking, Mr. Johnson was illegally fingerprinted and photographed.
40. Mr. Johnson did not commit any crimes or violations of the law.
41. Defendants, including Merandy, intentionally provided said false information to the Kings County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Johnson, namely that he committed criminal possession of a firearm and criminal possession of a weapon in the fourth degree.
42. At no point did Defendants, including Merandy, ever observe Mr. Johnson commit any crime or offense.
43. At no point were the defendants, including Merandy, ever told by any witnesses that Mr. Johnson committed any crime or violation of the law.
44. Defendants, including Merandy, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Johnson.
45. Defendants, including Merandy, never possessed probable cause to believe a prosecution would succeed against Plaintiff, that Plaintiff was guilty of any crime.
46. While Plaintiff was unlawfully detained, Defendants, including Merandy, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for criminal possession of a firearm and criminal possession of a weapon in the fourth degree.
47. Defendants never possessed a legally issued warrant for plaintiff's arrest.

48. Defendants, including Merandy, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping, searching and arresting an individual illegally without a search warrant, probable cause or reasonable suspicion, due to no weapon or firearm being found.
49. Defendants, including Merandy, suppressed evidence and engaged in conduct undertaken in bad faith.
50. Defendants have displayed a pattern and practice of falsely alleging an illegal firearm and a weapon to be found to justify otherwise unwarranted arrests.
51. Defendants have displayed a pattern and practice of falsely arresting individuals present where no firearm or weapon is found.
52. Plaintiff was wrongfully incarcerated for approximately three (3) days, until he was released on or about January 3, 2018.
53. Plaintiff was forced to return to court to appear on the false charges levied against him, until all charges were favorably terminated and dismissed on May 17, 2018.
54. During all of the events described, the Defendants, including Merandy, acted maliciously and with intent to injure Plaintiff.
55. Defendant Merandy was fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Johnson, because Defendant Merandy knew that Mr. Johnson was never in possession of any illegal weapon or firearm and that he was an innocent man.
56. At all times relevant hereto, Defendants, including Merandy, were involved in the decision to arrest Plaintiff without probable cause. JOHN and/or JANE DOES 1 through 20 failed to intervene when they observed Plaintiff being arrested without probable cause.

57. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
58. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
59. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.
60. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
61. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Johnson.
62. As a direct and proximate result of the acts of the defendants, including Merandy, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and

suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

- 63. The above paragraphs are here incorporated by reference as though fully set forth.
- 64. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 65. Plaintiff was conscious of his confinement.
- 66. Plaintiff did not consent to his confinement.
- 67. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

- 71. The above paragraphs are here incorporated by reference as though fully set forth.
- 72. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

73. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
74. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

77. The above paragraphs are here incorporated by reference as though fully set forth.
78. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
79. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
81. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION**Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants**

83. The above paragraphs are here incorporated by reference as though fully set forth.
84. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
85. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
86. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
87. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION**Malicious Prosecution Under
New York State Law**

88. The above paragraphs are here incorporated by reference as though fully set forth.
89. Defendants initiated the prosecution against Plaintiff.
90. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
91. Defendants acted with malice.
92. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
95. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth.
97. Defendants initiated the prosecution against Plaintiff.
98. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
99. Defendants acted with malice.
100. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
101. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

104. The above paragraphs are here incorporated by reference as though fully set forth.

105. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
106. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
107. Defendants intended to inflict substantial harm upon Plaintiff.
108. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
111. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

112. The above paragraphs are here incorporated by reference as though fully set forth.
113. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
114. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
115. Defendants intended to inflict substantial harm upon Plaintiff.
116. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

117. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
119. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

120. The above paragraphs are here incorporated by reference as though fully set forth.
121. Those Defendants, including John and/or Jane Doe 1-20, that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
122. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
124. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth.

126. Those Defendants. Including John and/or Jane Doe 1-20, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
127. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
128. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
129. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

130. The above paragraphs are here incorporated by reference as though fully set forth.
131. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
132. Defendant City breached that duty of care.
133. Defendant City placed defendants in a position where they could inflict foreseeable harm.
134. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
135. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

137. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

138. The above paragraphs are here incorporated by reference as though fully set forth.

139. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

140. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

141. Defendant City's policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City's employees.

142. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

144. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
Together with the costs and disbursements of this action

Dated: Bayside, New York
June 19, 2019

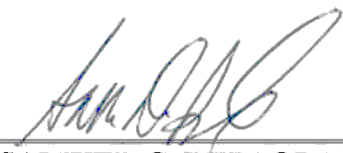


SIM & DEPAOLA, LLP
By: Samuel C. DePaola
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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 19, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER JOHNSON,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, GARTH MERANDY, and JOHN or JANE DOE 1-20,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: Samuel C. DePaola
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Ste. 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for